

Number 24 *of* 2001

CHILDREN ACT 2001

REVISED

Updated to 27 November 2017

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All Acts up to and including *Legal Metrology (Measuring Instruments) Act 2017* (31/2017), enacted 28 November 2017, and all statutory instruments up to and including *Criminal Justice (Victims of Crime) Act 2017 (Commencement) Order 2017* (S.I. No. 530 of 2017), made 24 November 2017, were considered in the preparation of this Revised Act.

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AN ACT TO MAKE FURTHER PROVISION IN RELATION TO THE CARE, PROTECTION AND CONTROL OF CHILDREN AND, IN PARTICULAR, TO REPLACE THE CHILDREN ACT, 1908, AND OTHER ENACTMENTS RELATING TO JUVENILE OFFENDERS, TO AMEND AND EXTEND THE CHILD CARE ACT, 1991, AND TO PROVIDE FOR RELATED MATTERS. [8*th July*, 2001]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART 1

PRELIMINARY

Short title and collective citation.

1.—(1) This Act may be cited as the Children Act, 2001.

(2) *Part 2, section 267* and the Child Care Act, 1991, may be cited together as the Child Care Acts, 1991 and 2001.

Commencement.

2.—(1) This Act shall, subject to *subsection (2)*, come into operation on such day or days as, by order or orders made by the Minister under this section, may be fixed either generally or with reference to any particular purpose or provision, and different days may be so fixed for different purposes and different provisions.

(2) (*a*) *Parts 2* and *3* shall come into operation on such day or days as, by order or orders made by the Minister for Health and Children, may be fixed generally in relation to either or both of these Parts or with reference to any particular purpose or provision thereof, and different days may be so fixed for different purposes and different such provisions.

[(*aa*) *Part 5* shall come into operation 3 months after the passing of the Criminal Justice Act 2006.**]**

(*b*) *Section 77* shall come into operation on such day as the Minister, with the agreement of the Minister for Health and Children, may be order appoint.

(*c*) **[**...**]**

(*d*) *Part 10* shall come into operation on such day or days as, by order or orders made by the Minister **[**...**]**, may be fixed either generally or with reference to any particular purpose or provision, and different days may be so fixed for different purposes and different provisions.

after the commencement as if it had been done by or on behalf of the board of management appointed to the school under *section 164*.

Transitional provisions.

224.—(1) A child who is serving a period of detention in an institution which is a certified reformatory school or an industrial school in accordance with Part IV of the Act of 1908 shall not have his or her period of detention varied by reason only of an alteration of title or description of the said institution.

(2) Where a period of time specified in a provision of the Children Acts, 1908 to 1989, had not expired at the commencement of any corresponding provision of this Act, this Act shall have effect as if the corresponding provision had been in force when the period began to run.

PART 11

Special Residential Services Board

Interpretation (*Part 11*).

225.—**[**...**]**

Special Residential Services Board.

226.—**[**...**]**

Change of name of Board.

226A.—**[**...**]**

Functions of Board.

227.—**[**...**]**

Assignment of other functions.

228.—**[**...**]**

Policy directions.

229.—**[**...**]**

Membership, etc., of Board.

230.—**[**...**]**

Removal and resignation of members.

231.—**[**...**]**

Temporary substitutes.

232.—**[**...**]**

Casual vacancies.

233.—**[**...**]**

Remuneration of members.

234.—**[**...**]**

Application to Board of *sections 175, 177* and *178*.

235.—**[**...**]**

Seal.

236.—**[**...**]**

Chief Executive of Board.

237.—**[**...**]**

Staff of Board.

238.—**[**...**]**

Superannuation of staff.

239.—**[**...**]**